

23STCV19734 23STCV19734

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-13

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Case Number: 23STCV19734 Hearing Date: August 13, 2026 Dept: 513

Superior

Court of California

County of

Los Angeles – Central District

Department 513

Marcela Martinez De Baeza

;

Plaintiff,

vs.

Eli Inc.

, et al.,

Defendants.

Case No.:

23STCV19734

Hearing Date:

August 13, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

MOTion
for Provisional Certification of Settlement Class and Preliminary Approval of
Class Action Settlement

MOVING PARTY: Plaintiff Marcela Martinez De Baeza

RESPONDING
PARTY: No response

Motion for
Provisional Certification of Settlement Class and Preliminary Approval of Class
Action Settlement

The court considered the moving papers
filed in connection with this motion. No opposition was filed.

DISCUSSION

Plaintiff Marcela
Martinez De Baeza ("Plaintiff") moves the court for an order provisionally
certifying a Settlement Class and preliminarily approving a class and PAGA
action settlement.

The parties have
reached a settlement of \$135,000.00. (Boyamian
Decl., Ex. 1 [Settlement Agreement] ¶ 1.22 [defining gross settlement amount].)

Labor Code
section 2699, subdivision (s)(2) provides that "[t]he superior court shall
review and approve any settlement of any civil action pursuant to" PAGA.¿ The court's review of PAGA settlements
"ensur[es] that any negotiated
resolution is fair to those affected."¿ (Williams v. Superior Court (2017) 3

Cal.5th 531, 549.) “[A] presumption of fairness exists where: (1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.”

(Wershba v. Apple Computer, Inc. (2001) 91 Cal.App.4th 224, 244-245 [disapproved on other grounds].)

“[T]he

test is not the maximum amount plaintiffs might have obtained at trial on the complaint, but rather whether the settlement is reasonable under all of the circumstances.” (Id. at p. 250.)

The

court must also review and approve settlements of class litigation. (Cal Rules of Court, Rule 3.769, subd. (a).) The court has a “fiduciary responsibility” as guardian of absent class members’ rights to ensure the settlement is fair. (Luckey v. Superior Court (2014) 228 Cal.App.4th 81, 95.) Under California law, a presumption of fairness attaches to a settlement where: “(l) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objections is small.” (Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, 1802.)

In California,

there are two certification prerequisites: (1) the existence of an “ascertainable class,” and (2) “a well-defined community of interest in the questions of law and fact involved affecting the parties to be represented.” (Sotelo v. MediaNews Group, Inc. (2012) 207 Cal.App.4th 639, 647.) To certify a class, the party advocating class treatment must demonstrate: (1) a numerous class; (2) predominant common questions of law or fact; (3) class representatives with claims or defenses typical of the class; and (4) class representatives who can adequately represent the class.” (Brinker Restaurant Corp. v. Superior Court (2012) 53 Cal.4th 1004, 1021.)

The

court finds that all requirements for class treatment have been met and that equity warrants class treatment. Plaintiff has demonstrated a numerous class with predominant common questions of law or fact relating to these wage and hour claims such that joinder of all members would be impracticable. (Boyamian Decl. ¶ 56.) As one of the aggrieved employees, Plaintiff’s claims are typical of the

class, and Plaintiff has demonstrated that she can adequately represent the class. (De Baeza Decl. ¶¶ 7-14.)

The court has reviewed (1) the terms of the Settlement Agreement, including (i) the gross settlement amount of \$135,000, the \$10,000 enhancement payment to Plaintiff, attorney's fees not to exceed 35 percent of the gross settlement amount (\$47,250.00) and litigation expenses (not to exceed \$15,000), the administrator expense payment (\$3,990), (ii) the \$10,000 PAGA payment, of which 75 percent, or \$7,500, will be paid to the Labor and Workforce Development Agency, and of which the remaining 25 percent, or \$2,500, will be allocated to the aggrieved employees, (iii), the net settlement amount of \$51,260.00 to be distributed to the proposed class members, (iv) the settlement funding procedures, and (v) the release of the claims by Plaintiffs and the aggrieved employees, the latter of which are deemed to release all claims that were or reasonably could have been alleged based on the facts alleged in the Complaint and the PAGA notice; (2) the declarations of Plaintiff, in which Plaintiff attests to her involvement in this action; and (3) the declaration of Plaintiffs' counsel, Michael Boyamian, in which Boyamian asserts that (i) Plaintiff's counsel investigated the claims against Defendants, (ii) the parties attended an all-day mediation, at which the parties reached an agreement in principle to settle this action, (iii) the settlement was reached through arms-length bargaining, and (iv) counsel is experienced in employment law and wage and hour claims. (Boyamian Decl., Ex. 1 [Settlement Agreement], ¶¶ 1.22, 3.2,-5.4; De Baeza Decl. ¶¶ 7-14; Boyamian Decl., ¶¶ 5-20.)

The court has also considered counsel's declaration to determine the reasonableness of the request for attorney's fees in the amount of \$47,250.00, which is the maximum amount permitted by the Settlement Agreement. For the reasons set forth below, the court finds that an award of reasonable attorney's fees is \$47,250.00 and will therefore approve an award in that amount.

"[W]hen class action litigation establishes a monetary fund for the benefit of the class members, and the trial court in its equitable powers awards class counsel a fee out of that fund, the court may determine the amount of a reasonable fee by choosing an appropriate percentage of the fund created." (Laffitte v. Robert Half Internat. Inc. (2016) 1 Cal.5th 480, 503.) "A lodestar cross-check . . . provides a mechanism for bringing an objective measure of the work performed into the calculation of a

reasonable attorney fee. If a comparison between the percentage and lodestar calculations produces an imputed multiplier far outside the normal range, indicating that the percentage fee will reward counsel for their services at an extraordinary rate even accounting for the factors customarily used to enhance a lodestar fee, the trial court will have reason to examine its choice of a percentage.” (Id. at p. 504.)

The requested amount of attorney’s fees is 35 percent of the gross settlement amount. The court (1) has exercised its discretion to conduct a lodestar cross-check on the percentage fee, and (2) finds that Plaintiff has established a lodestar of \$50,150 (59 hours x Attorney Boyamian’s \$850 hourly rate). (Laffitte, supra, 1 Cal.5th at p. 506 [trial courts have discretion to conduct lodestar cross-check] Boyamian Decl. ¶ 59.) As the fee award requested in the settlement is less than the lodestar calculation to which Attorney Boyamian testifies, the court finds that the requested attorney’s fees are reasonable.

The court finds that Plaintiff has supported the request for \$11,417.04 in litigation costs. (Boyamian Decl., Ex. 3.) The remaining \$3,582.96 will be allocated to the net settlement. (Boyamian Decl., Ex. 1, Settlement Agreement, ¶ 3.2.2.)

Based on the arguments and evidence set forth in Plaintiff’s motion and supporting declarations, the court finds that the Settlement Agreement is fair, adequate, and reasonable.

The court has also reviewed the Settlement’s procedures for giving notice to class members and finds that it conforms to the requirements of the Rules of Court. (Boyamian Decl. Ex. 1 ¶¶ 7.1-7.8; Cal. Rules of Court, Rule 3.769, subd. (f).)

The court therefore grants in part Plaintiff’s motion, as modified to reduce the award of litigation expenses to the requested amount of \$11,417.04. The court has calculated the new net settlement amount to be \$54,842.96 (\$135,000 gross settlement -- \$47,250.00 in attorney’s fees -- \$11,417.04 in litigation expenses -- \$10,000 total enhancement payment to Plaintiff -- \$3,990 in administration expenses to Apex -- \$10,000 in PAGA payments).

ORDER

The court GRANTS
plaintiff Marcela Martinez De Baeza's motion for provisional class
certification and preliminary approval of class and PAGA settlement subject to
the following:

The court orders
that plaintiff Marcela Martinez De Baeza shall be awarded reduced litigation
expenses in the amount of \$11,417.04, with the remaining \$3,582.96 reallocated
to the net settlement amount.

The court orders plaintiff
Marcela Martinez De Baeza to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 13, 2026

Robert B. Broadbelt III

Judge of the Superior Court